

		4. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). 5. In light of the continuance of this motion, the parties may wish to change the proposed date for the final approval hearing. The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Lopez vs. Atrium Hospitality LP 2022-01245971	Motion for Final Approval The court has reviewed and considered the papers filed in support of plaintiff’s motion for final approval of a \$150,000 class action and PAGA settlement. The court GRANTS the motion as follows: \$5,000.00 for enhancement award to plaintiff; \$45,000.00 for attorneys’ fees; \$11,420.85 for litigation costs; \$6,850.00 for settlement administration costs; and \$10,000.00 total PAGA penalties (\$7,500.00 to the LWDA). Plaintiff to submit a revised proposed order reflecting the above disbursements. Plaintiff must also submit a redline version showing all changes. The final accounting hearing is scheduled for August 5, 2027 at 2:00 p.m. in Department CX102. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller’s Office under the unclaimed property law. If all funds are not fully and finally disbursed prior to the filing deadline, including to the State Controller, plaintiff must request a continuance.

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
113	Embee Inc vs. Safeco Insurance Company of America 2012-00586683	Motion for Summary Judgment and/or Adjudication Defendant Fireman’s Fund Insurance Company (Fireman’s Fund) moves for summary judgment against the fourth amended complaint of plaintiff Embee, Inc. fka Embee Plating (Embee). ROA 1979. The operative pleading alleges two causes of action against defendant: (1) breach of contract; and (2) and breach of the covenant of good faith and fair dealing. <i>Id.</i> In the alternative, defendant Fireman’s seeks summary adjudication of the following causes or action and/or issues: (1) First Cause of Action for Breach of Contract; (2) Second Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing; (3) Fireman’s Fund’s Seventh Affirmative Defense - Prohibition Against Voluntary Payments; and (4) Fireman’s Fund has no duty to pay costs incurred pursuant to Embee’s Corrective Action Consent Agreement with the Department of Toxic Substances Control as defense or indemnity costs for the Orange County Water District Action because Embee violated the no-voluntary-payments provision in each of the insurance policies at issue. Notice of Motion (ROA 2016) 2:6-19. For the following reasons, defendant’s motion for summary judgment is denied, and defendant’s motion for summary adjudication is denied. <i>Legal standard</i> A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-51. If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. <i>Binder v. Aetna Life Ins. Co.</i>